



Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

REGULAR SESSION HELD ON 11 JUNE 2018

PRESENT:

Hon. Edison R. Bilog, *City Vice-Mayor and Presiding Officer*;
Hon. Leandro B. Yangot Jr., *Member*;
Hon. Edgar M. Avila, *Member*;
Hon. Joel A. Alangsab, *Member*;
Hon. Faustino A. Olowan, *Member*;
Hon. Elmer O. Datuin, *Member*;
Hon. Peter C. Fianza, *Member*;
Hon. Lilia A. Fariñas, *Member*;
Hon. Arthur L. Allad-iw, *Member*;
Hon. Benny O. Bomogao, *Member*;
Hon. Francisco Roberto A. Ortega VI, *Member*; and
Hon. Michael L. Lawana, *Ex-Officio Member (President, Liga ng mga Barangay, Baguio City Chapter)*.

ABSENT:

Hon. Maria Mylen Victoria G. Yaranon, *Member* (on official travel abroad); and
Hon. Elaine D. Sembrano, *Member* (on official travel abroad).

VACANT:

Ex-Officio Member (*President, Pederasyon ng mga Sangguniang Kabataan, Baguio City Chapter*).

*Introduced by
Hon. Lilia A. Fariñas, and
based on the report and recommendations
of the Committee on Urban Planning,
Lands and Housing.*

RESOLUTION Numbered 184
(Series of 2018)

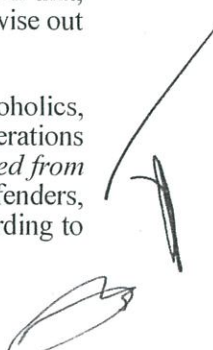
REQUESTING THE CITY PLANNING AND DEVELOPMENT OFFICE, IN COORDINATION WITH THE DEPARTMENT OF INTERIOR AND LOCAL GOVERNMENT AND THE BUREAU OF JAIL MANAGEMENT AND PENOLOGY-MALE AND FEMALE DORMS, AND THE BUREAU OF CORRECTIONS, TO IDENTIFY AN AREA WITHIN THE TERRITORIAL JURISDICTION OF THE CITY OF BAGUIO FOR THE POSSIBILITY OF CONSTRUCTING PENAL INSTITUTIONS ONE EXCLUSIVE FOR MEN AND ANOTHER EXCLUSIVE FOR WOMEN INMATES WITH DRUG-RELATED CRIMES.

WHEREAS, under Rule II – General Provisions, particularly Section 2 (Declaration of Policy) of the Revised Implementing Rules and Regulations of Republic Act No. 10575, otherwise known as “THE BUREAU OF CORRECTIONS ACT OF 2013” provides that: “*It is the policy of the State to promote the general welfare and safeguard the basic rights of every prisoner incarcerated in our national penitentiary by promoting and ensuring their reformation and social reintegration, creating an environment conducive to rehabilitation and compliant with the United Nations Standard Minimum Rules for Treatment of Prisoners (UNSMRTP). It also recognizes the responsibility of the State to strengthen government capability aimed towards the institutionalization of highly efficient and competent correctional services.*”;

WHEREAS, it has been reported that the Male Dorm of the Baguio City Jail is more than 400% above its holding capacity, with a total jail population of 474 inmates exceeding its original capacity meant for 100 Persons Deprived of Liberty (PDLs). On the other hand, the female dorm has 101 inmates, or 100% more than its ideal capacity of 50 persons for PDLs;

WHEREAS, according to the Baguio City Jail Male Dorm Warden, J/CInsp. Elvis Danglose, much of the congestion is due to the national government’s campaign against illegal drugs, such that, of the 474 inmates inside the male dorm almost 50% or 211 PDLs had drug-related cases, likewise out of the 101 PDLs inside the female dorm, 45 were drug-related;

WHEREAS, contrary to the Sub-section (a) Section 2. Drug Users/Dependents/Alcoholics, under Rule IV of the Bureau of Jail Management and Penology (BJMP) Comprehensive Operations Manual states that: “*Inmates found to be drug users/dependents/alcoholics should be segregated from other inmates, especially during the withdrawal period*” and the same rule applies for sex offenders, sex deviates, senior citizens, and convicted inmates. However, the separation of inmates according to category is not feasible considering the limited space;



Resolution Numbered 184, Series of 2018, page 2.

WHEREAS, according to sub-section (c) Segregation Scheme, under Rule V, Section 5. Operations of the Bureau of Corrections, R.A. 10575, it is provided that: "...inmates shall also be internally classified by the DRD (Directorate for Reception and Diagnostics) and segregated according to crimes committed based on the related penal codes such as Crimes Against Persons, Crimes Against Properties, Crimes Against Chastity, so on and so forth, as well as by other related Special Laws, Customs Laws and Immigration Laws. This is to ensure that an inmate will not be susceptible to acquire other criminal skills brought about by his exposure with other inmates who are committed to BuCor for different crimes of offenses, which normally happens in the present prison setup";

WHEREAS, in order to address the problem of congestion, and to comply with the provisions of the above cited laws, it is imperative for the city to identify available areas for this purpose.

NOW, THEREFORE, on motion of Hon. Avila, Hon. Datuin and Hon. Yangot, seconded by Hon. Alangsab, Hon. Lawana, Hon. Allad-iw and Hon. Olowan, be it

RESOLVED, as it is hereby resolved, to request the City Planning and Development Office, in coordination with the Department of Interior and Local Government and the Bureau of Jail Management and Penology-Male and Female Dorms, and the Bureau of Corrections, to identify an area within the territorial jurisdiction of the City of Baguio for the possibility of constructing penal institutions one exclusive for men and another exclusive for women inmates with drug-related crimes.

Unanimously adopted.

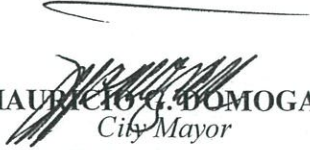
CERTIFIED CORRECT:


EDISON R. BILOG
City Vice-Mayor and
Presiding Officer
JUN 20 2018

Attested:


BRENNER E. BENGWAYAN
Secretary to the Sanggunian

NOTED:


MAURICIO G. DOMOGAN
City Mayor
20 JUN 2018


JENNIFER WEYGAN-MARTIN